



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2110: school governing bodies; meetings; prayer

MARTINEZ FLOOR AMENDMENT

1. Requires the *deliberative* governing body of a public school or public educational institution (deliberative governing body) to allow, on request from any governing body member, the member to provide an invocation for a meeting, rather than to pray during a meeting.
2. Allows a deliberative governing body member to provide an invocation if they make the request to the presiding officer of the deliberative governing body at least 48 hours before the meeting is scheduled to begin.
3. Specifies the school district governing board is the deliberative governing body of a school district and the charter school governing body is the deliberative governing body of a charter school if the governing board or governing body does not have a student member.
4. Prohibits a deliberative governing body member from providing an invocation that:
 - a. is exploited to proselytize, advance or disparage any faith or belief; or
 - b. coerces participation by observers of the invocation.
5. Defines *invocation* as a prayer or invocation that is delivered to a open meeting of a deliberative governing body.
6. Adds a legislative findings clause.

MARTINEZ FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2110
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 15, chapter 1, article 1, Arizona Revised
3 Statutes, is amended by adding section 15-120.08, to read:

4 15-120.08. Deliberative governing bodies; meetings;
5 invocation; prohibitions; definition

6 A. ON REQUEST FROM ANY MEMBER OF A [DELIBERATIVE] GOVERNING BODY OF
7 A PUBLIC SCHOOL OR PUBLIC EDUCATIONAL INSTITUTION IN THIS STATE, THE
8 [DELIBERATIVE] GOVERNING BODY SHALL ALLOW THE MEMBER TO [PRAY DURING]
9 [PROVIDE AN INVOCATION FOR] A MEETING OF THE [DELIBERATIVE] GOVERNING BODY
10 [IF THE MEMBER MAKES THE REQUEST TO THE PRESIDING OFFICER OF THE
11 DELIBERATIVE GOVERNING BODY AT LEAST FORTY-EIGHT HOURS BEFORE THE MEETING
12 IS SCHEDULED TO BEGIN].

13 B. FOR THE PURPOSES OF THIS SECTION, THE [DELIBERATIVE] GOVERNING
14 BODY OF:

15 1. A SCHOOL DISTRICT IS THE SCHOOL DISTRICT GOVERNING BOARD[. IF
16 THE SCHOOL DISTRICT GOVERNING BOARD DOES NOT HAVE A STUDENT MEMBER].

17 2. A CHARTER SCHOOL IS THE CHARTER SCHOOL GOVERNING BODY[. IF THE
18 CHARTER SCHOOL GOVERNING BODY DOES NOT HAVE A STUDENT MEMBER].

19 3. A CAREER TECHNICAL EDUCATION DISTRICT IS THE CAREER TECHNICAL
20 EDUCATION DISTRICT GOVERNING BOARD.

21 4. THE ARIZONA STATE SCHOOLS FOR THE DEAF AND THE BLIND IS THE
22 BOARD OF DIRECTORS ESTABLISHED BY SECTION 15-1321.

23 5. A COMMUNITY COLLEGE DISTRICT AS DEFINED IN SECTION 15-1401 IS
24 THE COMMUNITY COLLEGE DISTRICT GOVERNING BOARD.

25 6. A PUBLIC UNIVERSITY IS THE ARIZONA BOARD OF REGENTS.

26 [C. A MEMBER OF A DELIBERATIVE GOVERNING BODY OF A PUBLIC SCHOOL OR
27 PUBLIC EDUCATIONAL INSTITUTION IN THIS STATE MAY NOT PROVIDE AN INVOCATION
28 THAT EITHER:

1 1. IS EXPLOITED TO PROSELYTIZE OR ADVANCE ANY ONE FAITH OR BELIEF
2 OR TO DISPARAGE ANY OTHER FAITH OR BELIEF.
3 2. COERCES PARTICIPATION BY OBSERVERS OF THE INVOCATION.
4 D. FOR THE PURPOSES OF THIS SECTION, "INVOCATION" MEANS A PRAYER OR
5 INVOCATION THAT IS DELIVERED TO OPEN A MEETING OF A DELIBERATIVE GOVERNING
6 BODY OF A PUBLIC SCHOOL OR PUBLIC EDUCATIONAL INSTITUTION.]
7 <<Sec. 2. Legislative findings
8 [The legislature finds that:
9 1. Governing bodies of public schools and public educational
10 institutions are quasi-legislative, deliberative public bodies in this
11 state.
12 2. The governing body of a public school or public educational
13 institution is responsible for prescribing and enforcing policies and
14 procedures to govern the public school or public educational institution.
15 3. The governing body of a public school or public educational
16 institution is responsible for making decisions relating to the purchase
17 of school sites, the management and control of property and the management
18 of public monies that are appropriated to the public school or public
19 educational institution.
20 4. Although students are sometimes present at public school or
21 public educational institution governing body meetings for ceremonial
22 activities, the purpose of such meetings is to conduct the official,
23 sometimes fractious, business of governing over the public school or
24 public educational institution.]]>>

25 Enroll and engross to conform
26 Amend title to conform

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